

August 9, 2021 (5.0 hrs. - \$2,175.00). Time for drafting “motion for relief” and related work. Reduced to 2.5 hrs. at \$435.00/hr. for a total of \$1,087.50.

August 9, 2021 (3.4 hrs. - \$1,479.00). Time for drafting “motion for relief” and related work. Reduced to 2.5 hrs. at \$435.00/hr. for a total of \$1,087.50.

January 11, 2022 (4.8 hrs. - \$1,968.00). Time to “finalize” ex parte application to continue trial. Reduced to 2.0 hrs. at \$410.00/hr. for a total of \$820.00.

The foregoing items totaled \$13,096.50 as billed. The reduced time awarded for these items totals \$5,965.00, resulting in a net reduction of \$7,131.50. With that reduction, the \$50,451.00 base fees becomes **\$43,319.50** (\$50,451.00 less \$7,131.50), which amount the Court finds to be reasonable and necessary to the conduct of the litigation. The Court further finds that the time incurred in connection with the reply, **\$4,590.00**, be reasonable and necessary to the conduct of the litigation. \$43,319.50 plus \$4,590.00 equals **\$47,909.50**.

The Court further finds that the proposed lodestar multiplier of 1.35 is just and appropriate in view of all of the relevant factors. \$47,909.50 times 1.35 equals **\$64,677.83**.

Defendant argues that Plaintiff waited until December 8, 2025, 637 days after the case was dismissed, to file this motion and is therefore time barred, citing Rule 3.1702(b)(1) of the California Rules of Court (CRC) and other authority.

A Notice of Settlement of Entire Case was filed on November 9, 2023. The Court has considered and rejects Defendant’s contention that the motion is untimely. Although that notice reference the anticipated filing of a request for dismissal by March 11, 2024, no such dismissal appears of record on the Court’s docket. Indeed, the Court’s records do not indicate any final disposition and certainly no judgment of dismissal was ever entered.

Costs

The Court finds that the claimed costs in the amount of **\$4,603.30** are recoverable and were necessary to the conduct of the litigation.

Disposition

The Court finds and orders as follows:

1. The Motion for Fees and Costs is GRANTED.
2. Plaintiff is awarded and shall recover from Defendant attorneys’ fees in the sum of **\$64,677.83**.
3. Plaintiffs is awarded and shall recover from Defendant costs of suit in the sum of **\$4,603.30**.
4. Plaintiff to prepare the order after hearing and final form of judgment of dismissal.

14. 9:00 AM CASE NUMBER: N25-1906
CASE NAME: JONATHAN DUNCKEL VS. RUSSELL VACARRO
***HEARING ON MOTION IN RE: FEES AND COSTS**
FILED BY:
TENTATIVE RULING:

Parties to Appear.

15. 9:00 AM CASE NUMBER: N26-0265

CASE NAME: CLAIM OF:VALENTINA VILLANUEVA

*HEARING ON MINOR'S COMPROMISE

FILED BY:

TENTATIVE RULING:

PARTIES TO APPEAR.

16. 9:00 AM CASE NUMBER: N26-0466

CASE NAME: PETITION OF:CALIFORNIA CIVIL RIGHTS DEPARTMENT, AN AGENCY OF THE STATE OF CALIFORNIA

HEARING ON PETITION IN RE: PETITION FOR AN ORDER COMPELLING COMPLIANCE WITH SUBPOENA FOR INTERVIEW OF PERSON(S) MOST QUALIFIED

FILED BY: CALIFORNIA CIVIL RIGHTS DEPARTMENT, AN AGENCY OF THE STATE OF CALIFORNIA

TENTATIVE RULING:

This matter was resolved by the Court's Order entered April 28, 2026. The matter is fully dispositioned.

Discovery Law & Motion

17. 9:01 AM CASE NUMBER: C25-00713

CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION

*HEARING ON MOTION FOR DISCOVERY PROTECTIVE ORDER TO STAY ALL DISCOVERY UNTIL 30 DAYS AFTER RESOLUTION OF THE DEMURRER

FILED BY: THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION

TENTATIVE RULING:

See Line 5 above.

18. 9:01 AM CASE NUMBER: C25-01397

CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM

*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DEMAND FOR INSPECTION, COPYING, TESTING, OR SAMPLING OF DOCUMENTS, SET ONE

FILED BY: RODRIGUEZ, ROBERT D.

TENTATIVE RULING:

Parties to appear to address status of assignment to Discovery Facilitator.

19. 9:01 AM CASE NUMBER: C25-01690

CASE NAME: SHIMMICK CONSTRUCTION COMPANY, INC. VS. CITY OF ANTIOCH

*HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS TO THIRD PARTY S.G. BANKS, INC.